

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

In the matter of an Appeal filed in terms of Article 138(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka, with Section 331 of the Code of Criminal Procedure Act and Section 19(B) of the High Court of Provinces (Special Provisions) Act No. 19 of 1990.

The Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:
CA/HCC/ 0227/23

-Vs-

High Court Embilipitiya Case No:
HCE/148/2019

Murugan Nadaraja *alias* Raja

Accused

AND NOW BETWEEN

Murugan Nadaraja *alias* Raja

Accused-Appellant

-Vs-

Hon. Attorney General
Attorney General's Department
Colombo 12.

Complainant- Respondent

Before : **P Kumaratnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Isuru Somadasa for the Accused-Appellant
Suharshi Herath, DSG for the Respondent

Argued on : 12-05-2026

Decided on : 18-06-2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as “the Appellant”) was indicted before the High Court of Embilipitiya for committing grave sexual abuse on a minor, i.e., Paramanandan Divya Salani, for committing an offence punishable under Section 365B(2)(b) of the Penal Code amended by Act No. 22 of 1995 and the Act No. 29 of 16 of 2006.
2. When the charge was read out to the Appellant, he pleaded not guilty to the charge. Accordingly, the matter had been taken up for trial before the High Court Judge without a jury. At the conclusion of the trial, the Learned High Court Judge convicted the Appellant and sentenced him to 15 years' rigorous imprisonment. Additionally, the Appellant was also ordered to pay a fine of Rs. 10,000/- and serve a sentence of six months' imprisonment in the event of default. Also, he was ordered to pay the prosecutrix a sum of Rs. 100,000/- as compensation and a default sentence of two years' simple imprisonment.
3. Being aggrieved by the Judgment and the Sentencing Order dated 06-06-2023, the Appellant has preferred the instant Appeal.

Brief Facts of the Case

4. On the day of the incident, the prosecutrix (PW1) had been playing with her sister when the Appellant, who is a neighbor of the prosecutrix, came and took her to his house. According to the prosecutrix, her parents had gone to pluck tea leaves at the time. He had then asked her to remove her clothes. The prosecutrix had then removed her clothes, after which the Appellant had made her lie on the bed. Thereafter, the Appellant had performed inter-crural sex on the prosecutrix for about an hour. After committing the said act, the Appellant had asked the prosecutrix to get up and collect firewood and to pluck the weeds in his compound. The prosecutrix had asked her sister to bring her clothes. She had then worn them and put the firewood into the Appellant's house as instructed by the Appellant. Thereafter, she had told the incident to her parents on the same day. According to the prosecutrix, she was 9 years old when the alleged incident took place. The prosecutrix and her mother had lodged a complaint at the police station on the following day.
5. Upon the conclusion of the prosecution case, the Appellant opted to testify before the Court. He denied all the allegations leveled against him. His position is that the prosecutrix's father was falsely accusing him of having an illicit affair with his wife and, as a result, he is trying to implicate him in this case. DW1, Rajendran Shashikumar, testified on behalf of the Appellant and stated that, on the day of the incident, he went to the Appellant's house to have some rice and curry. He had his meal at the Appellant's house and stayed there for about 10 minutes. According to DW1, the prosecutrix and sister were chopping firewood outside the Appellant's house at that time.

Analysis

6. Although several grounds of appeal were urged in the Petition of Appeal, when this case was taken up for argument, the Learned Counsel for the Appellant stated that the Appellant only wishes to challenge the sentence. Therefore, the sole question for determination in this appeal is whether the sentence imposed on the Appellant by the

Learned High Court Judge of Embilipitiya is excessive, given the circumstances of the case.

7. In the case before the High Court, the Learned Counsel for the Defence has submitted that the Appellant is married with two children; and has no prior convictions or any pending cases against him. Accordingly, it was contended that these mitigating circumstances warranted the exercise of leniency by the court in determining the appropriate sentence to be imposed on the Appellant.
8. In deciding whether the sentence imposed on the Appellant by the Learned High Court Judge is excessive and requires variation/modification, the following authorities are of much relevance.
9. Sri Lankan Courts, in a long line of judicial authorities, have held that cases involving sexual offences, especially where the victims are children, have to be severely dealt with so as to create deterrence in society.
10. For instance, in ***Attorney General vs. Hewa Walimunige Gunasena*** CA/PHC/110/2012 (Decided on 12-02-2014) it was held by Sunil Rajapakshe J that;

“After analyzing the submissions made by the Petitioner and the accused Respondent, I am of the opinion that the facts relating to this case warrants that the accused should be severely dealt with. Therefore, a sentence of two years rigorous imprisonment suspended for ten years on the accused for a grave child abuse is a very lenient sentence considering the beastliness of the crime. When an offence of child abuse is proved victims of tender age and innocent behavior the sentence of imprisonment should be imposed severely. Further I hold two years R.I suspended for ten years is not adequate for the purpose of preventing the commission of further offences by the accused. Cases of indecent touching, threats by an older man on a small girl seem to attract custodial sentence.”

11. In ***State of Andhra Pradesh vs. Bodem Sundara Rao***, (1995) 6 SCC 230, AIR 1996 SC 530, the Indian Supreme Court, while dealing with a case of reduction of sentence

from 10 years rigorous imprisonment to 4 years rigorous imprisonment by the High Court in the case of rape of a girl aged between 13 and 14 years, it was observed:

“In recent years, we have noticed that crime against woman are on the rise. These crimes are an affront to the human dignity of the society. Imposition of grossly inadequate sentence and particularly against the mandate of the Legislature not only is an injustice to the prosecutrix of the crime in particular and the society as a whole in general but also at times encourages a criminal. The Courts have an obligation while awarding punishment to impose appropriate punishment so as to respond to the society's cry for justice against such criminals. Public abhorrence of the crime needs a reflection through the Courts verdict in the measure of punishment. The Courts must not only keep in view the right of the criminal but also the rights of the prosecutrix of crime and the society at large while considering imposition of the appropriate punishment. The heinous crime of committing rape on a helpless 13/14-year-old girl shakes our judicial conciseness. The offence was inhumane.”

12. Furthermore, in dealing with the offence of rape and its traumatic effect on a rape prosecutrix, it was held in ***State of Punjab vs. Gurmit Singh***, 1996 AIR 1393, 1996 SCC (2) 384 that;

“Of late, crime against women in general and rape in particular is on the increase. It is an irony that while we are celebrating woman's right in all spheres, we show little or no concern for her honour. It is a sad reflection on the attitude of indifference of the society towards the violation of human dignity of the victims of sex crimes. We must remember that a rapist not only violates the prosecutrix's privacy and personal integrity, but inevitably causes serious psychological as well as physical harm in the process. Rape is not merely a physical assault- it is often destructive of the whole personality of the prosecutrix. A murderer destroys the physical body of his victim, a rapist degrades the very soul of the helpless female. The Courts, therefore, shoulder a greater responsibility while trying an accused on charges of rape. They must deal with such cases with utmost sensitivity.”

13. In the case of **Keith Billam** (1986) Vol 82 Criminal Appeal Reports 347 the Lord Chief Justice held as follows;

“The crime should in any event be treated as aggravated by any of the following factors : (1) violence is used over and above the force necessary to commit the rape ; (2) a weapon is used to frighten or wound the prosecutrix ; (3) the rape is repeated ; (4) the rape has been carefully planned : (5) the defendant has previous convictions for rape or other serious offences of a violent or sexual kind ; (6) the prosecutrix is subjected to further sexual indignities or perversions ; (7) the prosecutrix is either very old or very young ; (8) the effect upon the prosecutrix, whether physical or mental, is of special seriousness. Where any one or more of these aggravating features are present, the sentence should be substantially higher than the figure suggested as the starting point.”

14. In this regard, it is pertinent to mention that the Court’s discretion in sentencing is essentially a balancing exercise wherein the Court has to weigh all the aggravating and mitigating factors. The Indian Supreme Court in **Raju Jagdish Paswan vs. The State of Maharashtra** AIR 2019 Supreme Court 897 (decided on 17-01-2019), citing with approval **Bachan Singh vs. The State of Punjab** (1982)3 SCC 24 (decided on 09-05-1980) stated as follows;

“The sentencing discretion conferred on courts cannot be said to be untrammelled or unguided. The discretion has to be exercised judiciously in accordance with well-recognized principles crystallized by judicial decisions after balancing all the aggravating and mitigating circumstances. What is the relative weight to be given to the aggravating and mitigating factors depends on the facts and the circumstances of the case. More often than not, the mitigating and aggravating factors are so intertwined that it is difficult to give a separate treatment to each of them.”

15. In the present case, a number of aggravating circumstances are discernible from the evidence. The fact that the prosecutrix was very young, below the age at which she could legally consent to a sexual relationship, the psychological and physical harm

suffered by the minor child in the process, the old age of the Appellant, the fact that the Appellant is well-known to the prosecutrix and has exploited the confidence and the trust reposed in him by the minor child are some of the aggravating factors that warrant the consideration of this Court.

16. In addition to the above, the Learned State Counsel has submitted that the prosecutrix was six years of age when this heinous crime was committed on her; she has suffered both physically and psychologically as a result of this unfortunate incident; she comes from a poor and an under privileged background; her entire life including her education has been severely affected as a result of this incident; the Appellant has not pleaded guilty in the first instance, instead he had been convicted upon the conclusion of the trial, hence, no clemency should be shown to the Appellant.

17. However, we also note that there are no physical injuries inflicted on the prosecutrix. The Medico Legal Report does not mention any physical injuries suffered by the prosecutrix (*vide pages 154 and 354 of the appeal brief*). The Appellant has had no prior convictions and is a first-time offender; the Appellant was 61 years old at the time he was convicted. There is no evidence to the effect that the Appellant had threatened the prosecutrix to remove her clothes, nor is there any evidence to establish that he had threatened the prosecutrix or her family subsequent to the incident. Furthermore, no evidence was produced by the prosecution to the effect that the Appellant has a propensity to commit further crimes, causing a continuing threat to society.

18. Furthermore, there is no medical evidence to suggest that the child suffered any permanent psychological injury as a consequence of the offence. Accordingly, having considered all the relevant circumstances, particularly the age of the Appellant, I am of the view that the sentence imposed is excessive and merits some degree of judicial clemency.

19. Accordingly, notwithstanding the seriousness of the offence committed against the prosecutrix, and upon due consideration of the mitigating circumstances outlined above, we are of the opinion that this is an appropriate case in which to exercise a degree of judicial leniency in favour of the Appellant.

20. Accordingly, I reduce the 15 years' rigorous imprisonment initially imposed on the Appellant to 8 years' rigorous imprisonment, which shall take effect from the date of conviction, i.e. 06-06-2023. The order as to fine, compensation, and the default sentence shall remain unaltered. Subject to the aforesaid variation, this Appeal is partially allowed.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree,

Judge of the Court of Appeal